

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Riddle	Team: Squad #05	CCRB Case #: 202311188	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/28/2023 7:54 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/28/2025	Precinct: 45		
Date/Time CV Reported Tue, 11/28/2023 12:15 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 11/28/2023 12:15 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Elias Oleaga	03055	975703	045 PCT
3. PO Francisco Floresayala	24211	973394	045 PCT
4. PO Frank Giordano	27714	969092	045 PCT
5. PO Emilio Perez	11652	967248	045 PCT
6. PO Victor Guzman	15614	964037	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Edgar Zhanay	30756	946578	045 PCT
2. LT Sean Monahan	00000	947264	045 PCT
3. PO Kennedy Marte	08896	957814	045 PCT
4. PO Daniel Lonergan	10179	956855	045 PCT
5. PO Maggie Gonzalez	12264	965731	045 PCT
6. PO Jason Taveraspena	26525	973800	045 PCT
7. PO Jonathan Valle	29791	973824	045 PCT
8. PO Edward Cornielaleman	05675	968345	045 PCT
9. PO Jason Munoz	29465	969242	045 PCT
10. PO Steven Valarezo	27607	972353	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Elias Oleaga	Abuse: Police Officer Elias Oleaga entered § 87(2)(b) in the Bronx.	A . Within NYPD Guidelines
B . PO Emilio Perez	Abuse: Police Officer Emilio Perez entered § 87(2)(b) in the Bronx.	B . Within NYPD Guidelines
C . PO Francisco Floresayala	Abuse: Police Officer Francisco Floresayala entered § 87(2)(b) in the Bronx.	C . Within NYPD Guidelines
D . PO Victor Guzman	Abuse: Police Officer Victor Guzman entered § 87(2)(b) in the Bronx.	D . Within NYPD Guidelines
E . PO Francisco Floresayala	Discourtesy: Police Officer Francisco Floresayala spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines
F . PO Elias Oleaga	Discourtesy: Police Officer Elias Oleaga spoke discourteously to § 87(2)(b)	F . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
G . PO Frank Giordano	Discourtesy: Police Officer Frank Giordano spoke discourteously to § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . PO Elias Oleaga	Force: Police Officer Elias Oleaga struck § 87(2)(b) with an asp.	H . Unable to Determine
I . PO Elias Oleaga	Abuse: Police Officer Elias Oleaga damaged § 87(2)(b) property.	I . Within NYPD Guidelines
J . PO Francisco Floresayala	Abuse: Police Officer Francisco Floresayala damaged § 87(2)(b) property.	J . Within NYPD Guidelines
K . PO Emilio Perez	Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)	K . Substantiated
L . PO Emilio Perez	Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)	L . Substantiated
M . PO Emilio Perez	Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)	M . Within NYPD Guidelines
N . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	N . Unfounded
O . Officers	Abuse: Officers did not obtain medical treatment for § 87(2)(b)	O . Unfounded
P . Officers	Abuse: Officers did not obtain medical treatment for § 87(2)(b)	P . Unfounded

Case Summary

On November 28, 2023, § 87(2)(b) filed this complaint with the CCRB over the phone. On December 2, 2023, § 87(2)(b) filed a duplicative complaint regarding this incident on the CCRB's website. § 87(2)(b) and § 87(2)(b) filed the complaints on behalf of themselves and their 22-year-old son, § 87(2)(b) is a retired DOC officer, and § 87(2)(b) is a former NYPD officer.

On November 28, 2023, at approximately 7:54 a.m., § 87(2)(b) fled on foot into his family's residence at § 87(2)(b) in the Bronx, while being chased by officers who had responded to a 911 call regarding him assaulting another civilian. PO Elias Oleaga, PO Emilio Perez, PO Francisco Flores Ayala, and PO Victor Guzman entered the residence (**Allegations A-D: Abuse of Authority, within NYPD guidelines**). During a struggle to gain entry at the doorway, PO Oleaga, PO Francisco Flores Ayala, and PO Frank Giordano of the 45th Precinct used profanity toward § 87(2)(b) (**Allegations E-F: Discourtesy, within NYPD guidelines; Allegation G: Discourtesy, miscellaneous – subject resigned**). While attempting to gain entry to the home by placing his asp in the doorjamb, PO Oleaga allegedly struck § 87(2)(b) arm with the asp (**Allegation H: Force, unable to determine**). PO Oleaga broke a glass pane in the door with his asp, and he and PO Flores Ayala broke the door itself while making entry (**Allegations I-J: Abuse of Authority, within NYPD guidelines**). PO Perez deployed his pepper spray into the residence through the partially open door, spraying § 87(2)(b) and § 87(2)(b) (**Allegations K-L: Force, substantiated; Allegation M: Force, within NYPD guidelines**). Officers allegedly used profanity toward § 87(2)(b) (**Allegation N: Discourtesy, unfounded**). Officers allegedly refused to obtain medical attention for § 87(2)(b) and § 87(2)(b) (**Allegations O-P: Abuse of Authority, unfounded**). § 87(2)(b) was arrested for assault in the second and third degrees, menacing in the second degree, criminal possession of a weapon in the fourth degree, false personation, and harassment in the second degree (**BR01**).

The investigation obtained BWC footage capturing this incident (**BR02-09**, summarized in **BR10-17**). All references to video evidence below refer to the timestamp in the video player, and not to any on-screen clock embedded in the footage itself.

PO Giordano resigned from the NYPD on September 4, 2024 (**BR18**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Elias Oleaga entered § 87(2)(b) in the Bronx.

Allegation (B) Abuse of Authority: Police Officer Emilio Perez entered § 87(2)(b) in the Bronx.

Allegation (C) Abuse of Authority: Police Officer Francisco Floresayala entered § 87(2)(b) in the Bronx.

Allegation (D) Abuse of Authority: Police Officer Victor Guzman entered § 87(2)(b) in the Bronx.

Allegation (E) Discourtesy: Police Officer Francisco Flores Ayala spoke discourteously to § 87(2)(b)

Allegation (F) Discourtesy: Police Officer Elias Oleaga spoke discourteously to § 87(2)(b)

Allegation (G) Discourtesy: Police Officer Frank Giordano spoke discourteously to § 87(2)(b)

Allegation (H) Force: Police Officer Elias Oleaga struck § 87(2)(b) with an asp.

Allegation (I) Abuse of Authority: Police Officer Elias Oleaga damaged § 87(2)(b) property.

Allegation (J) Abuse of Authority: Police Officer Francisco Floresayala damaged § 87(2)(b) property.

Allegation (K) Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)

Allegation (L) Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)

Allegation (M) Force: Police Officer Emilio Perez used pepper spray against § 87(2)(b)

A female bystander, identified as § 87(2)(b) called 911 at 7:47 a.m. and reported that two men were fighting near the intersection of Edison Avenue and Buhre Avenue (BR19). She described one of the civilians as a Hispanic man wearing a white t-shirt and grey sweatpants, and the other as a Hispanic man wearing all black. PO Gonzalez's BWC footage shows that officers responded to the scene shortly thereafter (BR03, beginning at 01:08) and located the 911 caller, who pointed them in the direction of the men who had been fighting. At 01:56, a different civilian approached and told the officers, "My neighbor in the black was just hit on the floor." PO Giordano's BWC footage (BR04, 02:03) then shows the officers finding the unidentified crime victim, who tells them that § 87(2)(b) attempted to stab him. Immediately, PO Giordano yells out to the officers that § 87(2)(b) has a knife, then joins other officers in running after § 87(2)(b) who is fleeing on foot. During the pursuit, PO Gonzalez (BR03, beginning at 02:02) tells the officers to get the "kid in white." After § 87(2)(b) runs into § 87(2)(b) PO Oleaga is the first officer to reach the door (BR09, beginning at 01:57), and he manages to stick his foot between the frame and the front door before § 87(2)(b) can close the door. A chaotic scene ensues, as multiple officers struggle to keep the door from closing, while an unseen civilian (or civilians) evidently push on it from inside. Due to the number of officers crowded together at the doorway, the BWC footage becomes intermittently obscured, such that no single officer's BWC footage captures all the relevant actions. PO Perez and PO Guzman are also both captured using their feet to keep the front door open (BR06, beginning at 02:17).

PO Oleaga's BWC footage (BR05, beginning at 02:21) captures PO Oleaga placing his asp in the crevice between the door and the doorframe as he yells at the civilians inside to open the door. He then bangs on the door, including the central glass pane, with his asp. Various officers repeatedly yell out commands to "get on the ground," and PO Flores Ayala, PO Giordano, and PO Oleaga order the civilians to "open the fucking door." PO Flores Ayala and PO Oleaga eventually push the door enough that it separates from its hinges (BR04, at 02:50).

PO Perez's BWC footage (BR06, at 02:30) shows him standing behind PO Oleaga at the doorway. PO Perez unholsters his pepper spray canister. The footage is chaotic and is difficult to discern, but PO Perez appears to begin discharging pepper spray through the small gap between the door and the doorframe at 02:50. In that moment, the officers finally force the door open, and PO Perez is still in the process of discharging the spray at a now-visible § 87(2)(b). PO Flores Ayala's footage (BR02, at 02:55) provides an alternate angle of this moment. During this time, PO Perez says, "Back the fuck up," and "Get the fuck over here now." PO Flores Ayala, PO Perez, and PO Guzman enter the home (BR02, at 03:12), walk past § 87(2)(b) and § 87(2)(b) and handcuff § 87(2)(b).

§ 87(2)(b) opted not to provide a statement to the CCRB due to the pending criminal litigation against him.

§ 87(2)(b) recounted (BR20) that he was downstairs when § 87(2)(b) suddenly entered. § 87(2)(b) was pushing against the door attempting to shut it, while people

outside were banging on it and yelling, “Open the fucking door!” Someone started to swing a black object in the crevice between the door and the door frame. § 87(2)(b) could not fully see the object and mistook it for the blade of a machete, which led him to conclude that the people trying to enter were gang members. § 87(2)(b) pushed against the left side of the door to close it, and soon the black object struck his arm. He realized it was a blunt instrument and yelled out that they hit his arm. § 87(2)(b) sustained bruising on his arm. § 87(2)(b) then saw through the crevice in the door that the people were uniformed officers. § 87(2)(b) announced that he was a retired Corrections officer and again asked what was going on. A voice replied, “Fuck you, open the fucking door.” § 87(2)(b) repeated that he was a retired officer and that he would fully comply with them, and a voice responded, “Fuck you, open the door.” At this time, § 87(2)(b) had come downstairs and identified herself as a retired NYPD officer, to which a voice replied, “Fuck you! Open the door!” PO Perez then stuck his pepper spray through the crevice in the door and deployed it from within inches of § 87(2)(b) face. § 87(2)(b) immediately yelled out, “You sprayed me in the eye!” A voice replied, “Fuck you, open the door,” and PO Perez discharged the pepper spray again. At some point § 87(2)(b) heard the glass in the door shatter.

§ 87(2)(b) account was similar to § 87(2)(b) (BR21-22). She was sleeping upstairs and was awoken by the commotion. From upstairs, § 87(2)(b) specifically heard § 87(2)(b) yelling, “You hit me on my arm!” and voices from the other side yelling back, “Open the fucking door, open the fucking door!” When she got downstairs, § 87(2)(b) yelled out that she was a retired cop. § 87(2)(b) asked what was going on and a voice outside yelled, “I don’t have to fucking tell you!” About a minute or two after getting downstairs, the individuals on the other side of the door shattered the glass on the front door. At this point, § 87(2)(b) joined in attempting to close the door as she was not aware who was on the other side and feared for her family’s safety. § 87(2)(b) recalled seeing four successive discharges of pepper spray, which struck her, § 87(2)(b) and § 87(2)(b) yelled out asking why they had sprayed her, and someone replied, “I don’t have to fucking explain anything.” Another voice answered, “Fuck you, open the door, we don’t have to tell you shit.”

§ 87(2)(b) reported that, in addition to shattering the glass on the door, the officers broke two of the hinges on the door frame, cracked the inner part of the door frame, and cracked the doorjamb. Officers also broke various ornaments, a glass lantern, photos, Christmas decorations, and other miscellaneous items that were near the door. § 87(2)(b) provided photos of the damage to the door about two months after the incident; she did not provide photographic evidence of damage to these other assorted items, except for the “lantern” which appeared to be missing one pane of glass (BR23). The collective BWC footage is chaotic and does not specifically capture officers causing any damage to photos or ornaments. There is a wreath which falls from the inner face of the front door, and there is a Christmas tree in the area just inside the front door, so it certainly remains possible that items which were near the doorway did sustain damage. However, the footage does not show officers appearing to deliberately damage any items inside; they merely apprehended § 87(2)(b) and immediately took him outside.

PO Oleaga recounted (BR24) that he received a radio run for an assault in progress with a knife, and he saw a description of the perpetrator, his clothing, and his location in the 911 system. He arrived on scene within two minutes. As officers spoke to the complainant, PO Oleaga saw § 87(2)(b) walking away. PO Oleaga and other officers began walking toward him, and he ran away. The officers ran after him. While running, an officer yelled out that § 87(2)(b) was armed with a knife. PO Oleaga was able to stick his foot into the crack of the door jamb to prevent § 87(2)(b) from closing the door. PO Oleaga emphasized that he was in the middle of a hot pursuit and that there were exigent circumstances, so he wanted to keep the door open to

maintain sight of § 87(2)(b) and to arrest him. PO Oleaga was also under the impression that § 87(2)(b) had broken in and was trespassing into a stranger's home. At the door, PO Oleaga yelled at § 87(2)(b) to open the door and to get on the ground, among other commands. PO Oleaga then drew his extendable baton and stuck it in the doorjamb to prevent § 87(2)(b) from fully closing the door. PO Oleaga denied that he struck anything or anyone with his asp when he stuck it in the doorjamb to keep the door from closing. At no point did PO Oleaga hear anyone complaining that they had been hit on the arm. PO Oleaga also used his asp to break the glass in the door, in case § 87(2)(b) did manage to get the door shut, so that officers would still be able to see him and to open the door from the outside. PO Oleaga was eventually hit in the face with pepper spray, and he then left the area in front of the door.

PO Perez recounted (**BR25**) that he saw PO Gonzalez and PO Flores Ayala speaking with a male victim, and he heard the complainant point out § 87(2)(b) as the perpetrator. PO Perez and other officers began to walk toward § 87(2)(b) and § 87(2)(b) fled when he saw the officers approaching him. PO Perez and other officers began to run after him. PO Perez chased § 87(2)(b) for about 10-15 seconds, during which time he had a clear, unobstructed view of him. Multiple officers reached the door before PO Perez. PO Perez attempted to deescalate the situation by yelling out lawful orders to open the door. After a couple minutes, PO Perez stuck his pepper spray can through the partially open doorway and sprayed into the house, in hopes that § 87(2)(b) would stop resisting. In the training he received at the police academy, PO Perez noted that officers are instructed to generally use pepper spray from a distance of at least 12 feet from the subject, though the circumstances may change in practice. During this incident, PO Perez did not follow the general rule of using pepper spray from at least 12 feet away because he wanted to regain control of the situation and felt that pepper spray was the best tool at his disposal. Although PO Perez could not see § 87(2)(b) behind the door at all, he was under the impression that § 87(2)(b) was armed and had assaulted someone with a weapon, and his primary intention in using pepper spray was to deescalate the situation by safely getting § 87(2)(b) into handcuffs as soon as possible. The door opened almost immediately after PO Perez began spraying. PO Perez then saw that § 87(2)(b) and § 87(2)(b) were behind the door and had also been pepper sprayed. PO Perez did not recall seeing any property damage other than the door itself.

Additional officer interviews were not necessary to reach dispositions for these allegations.

Based upon the BWC footage, the investigation concluded that the only profane remark officers made was to order the civilians to "open the fucking door." No officer made any of the other profane remarks alleged by § 87(2)(b) and § 87(2)(b).

Officers may not make a warrantless entry into a premises in which an individual has a legitimate expectation of privacy. *Payton v. New York*, 445 U.S. 573 (1980) (**BR26**). The courts have addressed various exceptions to the Payton rule, including exigent circumstances. *People v. McBride*, 14 N.Y.3d 440 (2010) (**BR27**) outlines the factors that must be considered when determining whether there are exigent circumstances under which officers may conduct a warrantless entry: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of entry. A warrantless entry is justified when officers are in hot pursuit of a suspect. A defendant may not defeat a proper arrest by escaping into a private place. *People v. Brantley*, 189 A.D.2d 886 (1992) (**BR28**).

DAO-DCT case # 2017-17005 maintains that “profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct” (BR29).

Officers must give due respect to property and may only damage property if doing so is “reasonably necessary” to effectuate their duties. *Onderdonk v. State*, 170 Misc.2d 155 (1996) (BR30).

Per NYPD Patrol Guide Procedure 221-07 (BR31), pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or exhibiting active aggression, to prevent individuals from physically injuring themselves, officers, or other civilians, to establish physical control of a subject attempting to flee from arrest or custody, to establish physical control of an emotionally disturbed person, or to control a dangerous animal. Officers are instructed to deploy pepper spray from a distance of no less than three feet. Pepper spray shall not be used in situations that do not require the use of physical force. Officers must avoid discharging pepper spray indiscriminately over a large area for disorder control.

§ 87(2)(g)

It is therefore recommended that **Allegations A-D** be closed as **within NYPD guidelines**. § 87(2)(g)

It is therefore recommended that **Allegations I-J** be closed as **within NYPD guidelines**.

The BWC footage showed officers only using profanity to emphasize the urgency of their orders and to gain compliance. § 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **miscellaneous – subject resigned**.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **unable to determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation M** be closed as **within NYPD guidelines**. § 87(2)(g)

it is recommended that **Allegations K-L** be closed as **substantiated**.

Allegation (N) Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation (O) Abuse of Authority: Officers did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b)

Allegation (P) Abuse of Authority: Officers did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that she asked the officers several times what was going on and various officers replied, “We don’t have to tell you shit.” § 87(2)(b) told the officers she had been pepper sprayed and made multiple requests for medical attention, but no officer acknowledged these requests. § 87(2)(b) also heard § 87(2)(b) request an ambulance, but no officer responded to or otherwise acknowledged the request. § 87(2)(b) complained that it took about 40 minutes for EMS to respond. When EMS arrived, they explained that they had been dispatched to the incident location multiple times and that each time the ambulance arrived, officers on scene told them that there was nobody there in need of medical attention.

While the officers who entered the home were apprehending § 87(2)(b) yelled out that had been hit, and repeatedly said that he could not see or breathe. § 87(2)(b) heard § 87(2)(b) calling 911, and she told them that they had both been pepper sprayed and needed an ambulance as soon as possible. § 87(2)(b) then walked out to the porch where he could see better. As the officers were starting to leave with § 87(2)(b) again asked what was happening and one of the officers replied, “Fuck you, I don’t gotta tell you shit.” At no point did the officers offer to call an ambulance, take them to the hospital, or indicate that they would render § 87(2)(b) or § 87(2)(b) any medical aid. Lt. Monahan eventually arrived, and § 87(2)(b) told him that they had called for an ambulance. Lt. Monahan said that he would determine what was causing the delay and made a call to someone. An ambulance finally arrived at the residence about 30-40 minutes after § 87(2)(b) called 911, and § 87(2)(b) and § 87(2)(b) chose to be treated in the ambulance rather than being transported to the hospital. § 87(2)(b) was given an ice pack for his arm in addition to the eye wash solution.

PO Gonzalez’s BWC footage shows that PO Giordano (BR03, at 03:30) used his radio to request a supervisor and EMS to the scene almost immediately after officers had § 87(2)(b) in custody. At 10:24, after interviewing the alleged victim of the assault, PO Gonzalez restates that the officers must return to the residence to make sure that an ambulance arrived for § 87(2)(b) and § 87(2)(b). PO Giordano (BR04, at 06:32) again goes over the radio requesting that the ambulance be rerouted to the correct location. At no point does any officer use profanity after entering the home.

In Lt. Monahan’s BWC footage (BR08, at 15:25), he asks § 87(2)(b) if they need medical attention and § 87(2)(b) answers, “Yes, we called twice already.” At 17:17, after § 87(2)(b) begins to complain about the incident and provide his account of what happened, Lt. Monahan tells the couple, “Let’s start with getting EMS here for you and then go step by step.” At 21:31, after Lt. Monahan explains that officers had called EMS, but they sent ambulances the initial incident location, PO Lonergan again calls for EMS to the scene. At 22:00, Lt. Monahan goes over the radio requesting an update regarding the ambulance for the address of the residence. At 30:20, an FDNY ambulance arrives. At 30:55, the EMTs explain that they had been at the location previously and thought the job had been taken care of, and Lt. Monahan clarifies that they also needed medical assistance for § 87(2)(b) and § 87(2)(b).

PO Oleaga recounted that officers helped him and another officer who was hit by the pepper spray walk to the end of the block where they had parked their vehicles. They rinsed their eyes with water. About five minutes later, an ambulance arrived, and PO Oleaga declined medical attention.

The BWC footage shows that no officer used profanity with § 87(2)(b) after she was pepper sprayed. It is therefore recommended that **Allegation N** be closed as **unfounded**. Footage shows that following PO Perez deploying his pepper spray, PO Giordano immediately requested EMS to the scene. § 87(2)(g)

It is therefore recommended that **Allegations O-P** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR32).
- § 87(2)(b)
- PO Oleaga has been a member of the NYPD for two years and has been a subject in three additional CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
 - 202400612 and 202409796 remain under investigation.
- PO Flores-Ayala has been a member of the NYPD for two years and has been a subject in four additional CCRB complaints and 12 allegations, of which two were substantiated:
 - 202206557 involved substantiated allegations of refusal to provide name and shield number against PO Flores Ayala. The Board recommended Command Discipline A and the NYPD imposed no discipline.
 - 202307934 and 202401197 remain under investigation.
- PO Guzman has been a member of the NYPD for seven years and has been a subject in three additional CCRB complaints and five allegations, none of which has been substantiated.
 - 202307934 and § 87(2)(g) remain under investigation.
- PO Giordano was a member of the NYPD for four years and had been a subject in two additional CCRB complaints and four allegations, of which two were substantiated:
 - 202303619 involved substantiated allegations of discourtesy and threat of arrest against PO Giordano. The Board recommended Command Discipline A and B, and the case was closed at APU after PO Giordano resigned.
- PO Perez has been a member of the NYPD for five years and had been a subject in three additional CCRB complaints and seven allegations, of which one was substantiated:
 - 202207747 involved a substantiated allegation of property damage against PO Perez. The Board recommended Command Discipline A and the NYPD imposed no discipline.
 - 202404789 and § 87(2)(g) remain under investigation.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) and § 87(2)(b) filed a Notice of Claim with the City of New York claiming unlawful entry into their home, invasion of privacy, destruction of property, assault, and battery. There is no 50H hearing scheduled (BR34).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: #5

Investigator:	<u> Inv. Angel Riddle </u>	<u> Investigator Angel Riddle </u>	<u> December 31, 2024 </u>
	Signature	Print Title & Name	Date

Squad Leader:	<u> Daniel Giansante </u>	<u> IM Daniel Giansante </u>	<u> January 2, 2025 </u>
	Signature	Print Title & Name	Date

Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date